



OCCUPANCY AGREEMENT - SELLER

**! IMPORTANT NOTICE TO BUYER/SELLER !**

This Occupancy Agreement (Agreement) is not intended for use in long-term tenancies. The parties are advised to use a Residential Rental agreement (NMAR Form 6101) for occupancies longer than seven (7) days. The parties hereby acknowledge that in addition to the terms set forth herein, their rights and obligations will be governed by the New Mexico Uniform Owners Resident Relations Act (NMUORRA), and in the event of any conflict between the NMUORRA and this Agreement, the NMUORRA will control. For a copy of the ORRA, visit the [NM Real Estate Commission's website](#) or request a copy from your Realtor®.

1. **PARTIES.** _____ ("Buyer")
and _____ ("Seller")
agree as set forth below, pursuant to the Purchase Agreement between the parties dated _____
2. **PROPERTY.**

Address (Street, City, State, Zip Code)

Legal Description

or see metes and bounds description attached as Exhibit _____, _____ Count(ies), New Mexico.

3. **POSSESSION; TERM.**

- A. Notwithstanding Closing of this transaction as set forth in the Purchase Agreement, the parties agree that Seller may continue to occupy the Property until _____, at _____ ☐ am ☐ pm Mountain Time ("Occupancy Period"). The parties intend to create a day-to-day tenancy.
- B. (Check all applicable) ☐ Buyer ☐ Seller will document the condition of the Property at the time of closing by ☐ Video/photographs ☐ Written report ☐ Other _____.

4. **PAYMENT.**

- A. **Deposit.** Payments are payable in advance beginning on the date of this Agreement. Seller shall pay to Buyer a Deposit of \$_____ to cover any damages suffered by Buyer as a result of Seller's occupancy. If Seller fully performs all obligations under this Agreement, Buyer shall refund the Deposit to Seller within _____ days of Seller vacating the Property. If Seller fails to fully perform Seller's obligations under this Agreement, the Deposit shall be applied to damages suffered by Buyer.
- B. **Occupancy Fee.** Seller shall pay to Buyer the sum of \$_____ per day, excluding Funding Date, for the use of the Property; and
- C. **Holdover Charges.** Seller shall vacate the property at the end of the occupancy period as provided in Paragraph 3A. In the event the Property is not surrendered to the Buyer at the end of the Occupancy Period, Seller shall pay to Buyer the Occupancy Fee PLUS an additional Holdover Charge of \$_____ per day until Seller vacates the Property and Property is restored to its former condition. **Buyer's acceptance of any Holdover Charge does NOT serve as an agreement by Buyer to extend the Occupancy Period.**
- D. **Due and Payable.** Deposits and Occupancy Fees are payable in advance beginning on the date of this Agreement. Holdover Charges, if applicable, are due daily as such charges are incurred. All payments to be delivered to: _____.

5. **EXPENSES.** Seller agrees to pay all expenses in connection with Seller's occupancy of the Property, including, but not limited to: utilities, fuel, maintenance of lawn, and snow removal, and further agrees that all meters for such utilities shall remain in Seller's name.

This form and all (NMAR) forms are for the sole use of NMAR members and those New Mexico Real Estate Licensees to whom NMAR has granted prior written authorization. Distribution of NMAR forms to non-NMAR members or unauthorized Real Estate Licensees is strictly prohibited. NMAR makes no warranty of the legal effectiveness or validity of this form and disclaims any liability for damages resulting from its use. By use of this form, the parties agree to the limitations set forth in this paragraph. The parties hereby release NMAR, the Real Estate Brokers, their Agents and employees from any liability arising out of the use of this form. You should consult your attorney with regards to the effectiveness, validity or consequences of any use of this form. The use of this form is not intended to identify the user as a REALTOR®. REALTOR® is a registered collective membership mark which may be used only by Real Estate Licensees who are members of the National Association of REALTORS® and who subscribe to the Association's strict Code of Ethics.



OCCUPANCY AGREEMENT - SELLER



6. **INSURANCE; MAINTENANCE; REPAIR.** During the term of this Agreement:
- A. Buyer agrees to procure and maintain in effect, a policy or policies of insurance adequately covering the Property and insuring against fire, extended coverage and public liability. The risk of loss or damage to the Property by fire or other elements shall be assumed by Buyer on the Funding Date. **BUYER SHALL CONFIRM THAT BUYER'S POLICY COVERS THE FOREGOING, EVEN THOUGH SELLER IS OCCUPYING THE PROPERTY.**
 - B. Seller agrees to procure and maintain in effect, as of the Funding Date, a policy of insurance adequately covering Seller's personal property and insuring against public liability which may arise by virtue of the use and occupancy of the Property by Seller. Seller will maintain a policy of insurance covering the Property and insuring against fire, extended coverage and public liability until Seller's interest is conveyed and the lien of any lender of Seller is released.
 - C. ☐ Seller ☐ Buyer is responsible for maintaining the Property, the heating, plumbing, electrical, and sewage systems, and will make such repairs that are reasonably necessary from the Closing date to the date of possession is surrendered to Buyer.
7. **ACCESS.** With reasonable notification to Seller, Buyer, Buyer's representatives and inspectors shall have the right to inspect the Property and complete all necessary work.
8. **ALTERATIONS; INDEMNITY.** Seller agrees to make no alterations without the prior written consent of Buyer during the term of this Agreement. Seller agrees to indemnify and hold Buyer harmless from any and all claims, materialmen's or mechanics' liens, demands, actions, causes of action, damages, expenses, losses or liabilities arising in any way from Seller's occupancy, use or enjoyment of the Property.
9. **TERMINATION.** Upon the end of the Occupancy Period, Seller shall:
- A. Peacefully deliver the Property, returning the Property to Buyer in same condition, ordinary wear and tear excepted, as upon the Funding Date;
 - B. Pay for all damages to the Property, if any, which occurred during the Occupancy Period, caused by Seller, and for all costs necessary to restore the Property to the condition on the Funding Date, including the deductible on any policy of insurance secured by Buyer;
 - C. Furnish proof of release of claims for improvements made to the Property by Seller.
10. **ATTORNEY FEES AND COSTS.** Should any aspect of this Agreement result in arbitration or litigation, the prevailing party of such action shall be entitled to an award of reasonable attorneys' fees and court costs.
11. **MANAGEMENT.** No Broker has any responsibility to manage the Property during the Occupancy Period. To comply with Real Estate Commission policy, if any Broker is responsible for handling any funds in connection with this Occupancy Agreement, a Property Management Agreement must be signed. Repairs and maintenance incidental to sale and authorized by Seller shall not be considered property management.
12. **ENTIRE AGREEMENT.** This Agreement contains the entire Agreement between the parties relating to the subject matter and supersedes any previous agreements, arrangements, undertakings or proposals, oral or written. This Agreement may be varied only by a document signed by both parties.
13. **FORCE MAJEURE.** Neither party shall be liable for delay or failure to perform any obligation under this Agreement if the delay or failure is caused by any circumstance beyond their reasonable control, including but not limited to, acts of God, war, civil unrest or industrial action.
14. **GOVERNING LAW AND VENUE.** This Agreement is to be construed in accordance with and governed by the internal laws of the State of New Mexico without giving effect to any choice-of-law rule that would cause the application of the laws of any jurisdiction other than the internal laws of the State of New Mexico to the rights and duties of the parties. Each party hereby irrevocably consents to the jurisdiction and venue of the state and federal courts located in the county in which the Property or any portion of the Property is located in connection with any claim, action, suit, or proceeding relating to this Agreement and agrees that all suits or proceedings relating to this Agreement shall be brought only in such courts.
15. **SEVERABILITY.** If any portion of this Agreement is found by any court of competent jurisdiction to be invalid or unenforceable, the remainder of this Agreement shall remain in full force and effect.



NEW MEXICO ASSOCIATION OF REALTORS® — 2025
OCCUPANCY AGREEMENT - SELLER



BUYER(S)

Buyer Signature	Printed Name	Date	Time
Buyer Signature	Printed Name	Date	Time

If additional signature lines are needed, please use NMAR Form 1150 – Signature Addendum

BUYER'S BROKER

Broker Name			
Qualifying Broker's Name			Qualifying Broker's NMREC License No.
Brokerage Firm	Office Phone	Fax	
Brokerage Address	City	State	Zip Code
Email Address	Broker ☐ is ☐ is not a REALTOR®		

SELLER(S)

Seller Signature	Printed Name	Date	Time
Seller Signature	Printed Name	Date	Time

If additional signature lines are needed, please use NMAR Form 1150 – Signature Addendum

SELLER'S BROKER

Broker Name			
Qualifying Broker's Name			Qualifying Broker's NMREC License No.
Brokerage Firm	Office Phone	Fax	
Brokerage Address	City	State	Zip Code
	Broker ☐ is ☐ is not a REALTOR®		